

STATE OF NEW YORK

8047--A

2025-2026 Regular Sessions

IN ASSEMBLY

April 22, 2025

Introduced by M. of A. RAJKUMAR -- read once and referred to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the court of claims act, in relation to permitting amendment of a claim or notice of intention to file a claim to correct jurisdictional pleading defects and to provide for a procedure for the dismissal of a claim based upon claimant's failure to comply with jurisdictional pleading requirements

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision b of section 11 of the court of claims act, as
2 amended by chapter 606 of the laws of 2007, is amended to read as
3 follows:

4 b. (i) The claim shall state the time when and place where such claim
5 arose, the nature of same, the items of damage or injuries claimed to
6 have been sustained and, except in an action to recover damages for
7 personal injury, medical, dental or podiatric malpractice or wrongful
8 death, the total sum claimed. A claim for the appropriation by the state
9 of lands, or any right, title or interest in or to lands shall include
10 an inventory or itemized statement of fixtures, if any, for which
11 compensation is claimed. The notice of intention to file a claim shall
12 set forth the same matters except that the items of damage or injuries
13 and the sum claimed need not be stated. The claim and notice of inten-
14 tion to file a claim shall be verified in the same manner as a complaint
15 in an action in the supreme court.

16 (ii) Notwithstanding the failure of a claim to comply with the plead-
17 ing requirements of paragraph (i) of this subdivision, a claimant who
18 has filed a claim on or after the effective date of this paragraph shall
19 be permitted to:

20 (A) amend the claim to correct any such failure without leave of court
21 within twenty days after its service, or at any time before the period

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 for responding to it expires, or within twenty days after service of a
2 responsive pleading or motion to dismiss the claim made before service
3 of the responsive pleading that contains an objection or defense based
4 upon the failure to comply with the pleading requirements set forth in
5 paragraph (i) of this subdivision, provided that any such amendment
6 shall be filed and served before an action asserting a like claim
7 against a citizen of the state would be barred under the provisions of
8 article two of the civil practice law and rules;

9 (B) make an application for leave to amend the claim to correct any
10 such failure at any time before an action asserting a like claim against
11 a citizen of the state would be barred under the provisions of article
12 two of the civil practice law and rules, or within forty days after the
13 service of a motion to dismiss that contains an objection or defense
14 based upon the failure of the claim to comply with the pleading require-
15 ments set forth in paragraph (i) of this subdivision. Any such applica-
16 tion shall be accompanied by the proposed amended claim clearly showing
17 the changes or additions to be made to the claim. In determining wheth-
18 er to grant the application pursuant to this subdivision, the court
19 shall consider, among other factors, whether claimant's failure to
20 comply with the pleading requirements set forth in paragraph (i) of this
21 subdivision was excusable; whether the delay in making the application
22 pursuant to this subparagraph was excusable; whether the state had
23 notice of the essential facts constituting the claim; whether the state
24 had an opportunity to investigate the circumstances underlying the
25 amendments proposed to be made by the amended claim; and whether the
26 failure to file or serve upon the attorney general a claim that complied
27 with the pleading requirements of paragraph (i) of this subdivision
28 resulted in substantial prejudice to the state. Any amendment asserted
29 in an amended claim that is permitted to be filed and served pursuant to
30 this subparagraph is deemed to have been interposed at the time the
31 claim was filed and served, unless the original claim does not provide
32 defendant with notice of the transactions, occurrences or series of
33 transactions or occurrences to be proved pursuant to the amended claim.

34 (iii) Notwithstanding the failure of a claim to comply with the plead-
35 ing requirements of paragraph (i) of this subdivision, a claimant who
36 has filed a claim before the effective date of this paragraph shall be
37 permitted to:

38 (A) where the claim was served less than forty days before the effec-
39 tive date of this paragraph, amend the claim to correct any such failure
40 without leave of court within twenty days after its service, or at any
41 time before the period for responding to it expires, or within twenty
42 days after service of a responsive pleading or motion to dismiss the
43 claim made before service of the responsive pleading that contains an
44 objection or defense based upon the failure to comply with the pleading
45 requirements set forth in this subdivision;

46 (B) make an application for leave to amend the claim to correct any
47 such failure at any time before an action asserting a like claim against
48 a citizen of the state would be barred under the provisions of article
49 two of the civil practice law and rules, or within one year of the
50 effective date of this paragraph, whichever is later. Any such applica-
51 tion shall be accompanied by the proposed amended claim clearly showing
52 the changes or additions to be made to the claim. In determining whether
53 to grant the application pursuant to this subdivision, the court shall
54 consider, among other factors, whether claimant's failure to comply with
55 the pleading requirements set forth in paragraph (i) of this subdivision
56 was excusable; whether the delay in making the application pursuant to

1 this subparagraph was excusable; whether the state had notice of the
2 essential facts constituting the claim; whether the state had an oppor-
3 tunity to investigate the circumstances underlying the amendments
4 proposed to be made by the amended claim; and whether the failure to
5 file or serve upon the attorney general a claim that complied with the
6 pleading requirements of this subdivision resulted in substantial preju-
7 dice to the state. Any amendment asserted in an amended claim that is
8 permitted to be filed and served pursuant to this subparagraph is deemed
9 to have been interposed at the time the claim was filed and served,
10 unless the original claim does not provide defendant with notice of the
11 transactions, occurrences or series of transactions or occurrences, to
12 be proved pursuant to the amended claim.

13 (iv) A claimant who has served a notice of intention to file a claim
14 on or after the effective date of this paragraph shall be permitted to
15 amend the notice of intention to file a claim to correct any failure to
16 comply with the pleading requirements of this subdivision at any time
17 within the period of time to serve such notice of intention to file a
18 claim pursuant to section ten of this act.

19 § 2. Subdivision c of section 11 of the court of claims act, as
20 amended by chapter 223 of the laws of 2007, is amended to read as
21 follows:

22 c. (i) Any objection or defense based upon failure to comply with
23 ~~(i)~~ (A) the time limitations contained in section ten of this act,
24 ~~(ii)~~ (B) the manner of service requirements set forth in subdivision a
25 of this section, or ~~(iii)~~ (C) the verification requirements as set
26 forth in subdivision b of this section is waived unless raised, with
27 particularity, either by a motion to dismiss made before service of the
28 responsive pleading is required or in the responsive pleading, and if so
29 waived the court shall not dismiss the claim for such failure. For
30 claims served on or after the effective date of the chapter of the laws
31 of two thousand twenty-five which amended this subdivision, any
32 objection or defense that asserts that the claim fails on its face to
33 comply with the pleading requirements of paragraph (i) of subdivision b
34 of this section, or that the claim fails to include any one of the
35 pleading requirements set forth in paragraph (i) of subdivision b of
36 this section, is waived unless raised, either by a motion to dismiss
37 made before the service of the responsive pleading is required or in the
38 responsive pleading, and if so waived the court shall not dismiss the
39 claim for such failure.

40 (ii) A motion to dismiss the claim that asserts that the claim or the
41 notice of intention to file a claim fails to comply with the pleading
42 requirements in paragraph (i) of subdivision b of this section must be
43 made no later than one hundred twenty days after the filing of the note
44 of issue, or no earlier than thirty days before trial where a note of
45 issue is not required to be filed.

46 § 3. This act shall take effect on the ninetieth day after it shall
47 have become a law.